

Court No. - 21

Case :- WRIT - C No. - 14308 of 2024

Petitioner :- Ram Naresh @ Ram Rahees Singh

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Muktesh Kumar Singh

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Rakesh Kumar Yadav

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The instructions supplied today is taken on record.
2. The petitioner has challenged an order dated 09.03.2024 passed by respondent no.4 making final assessment in a case of alleged theft of electricity and requiring the petitioner to deposit the assessed amount within fifteen days.
3. Sri Baleshwar Chaturvedi, learned counsel for the respondent-Electricity Department, states that the impugned order has been withdrawn and the petitioner has been granted fresh opportunity to file objections and thereafter fresh order will be passed.
4. In view of the aforesaid stand, nothing survives in the instant case. The petition is **disposed of** as infructuous but with liberty to the respondent-Electricity Department to pass fresh order of final assessment strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 1.5.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)